



Lesson 13 - Sale of **Uncompleted** Private Properties

- Housing Developers (Control and Licensing) Act
- Sales of Commercial Properties Act

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Introduction

Uncompleted Property = Building under Construction

→ Have not issue **Temporary Occupation Permit** or **Certificate of Statutory Completion**

1. Who can become a Real Estate Developer in Singapore ?

Housing developer is a

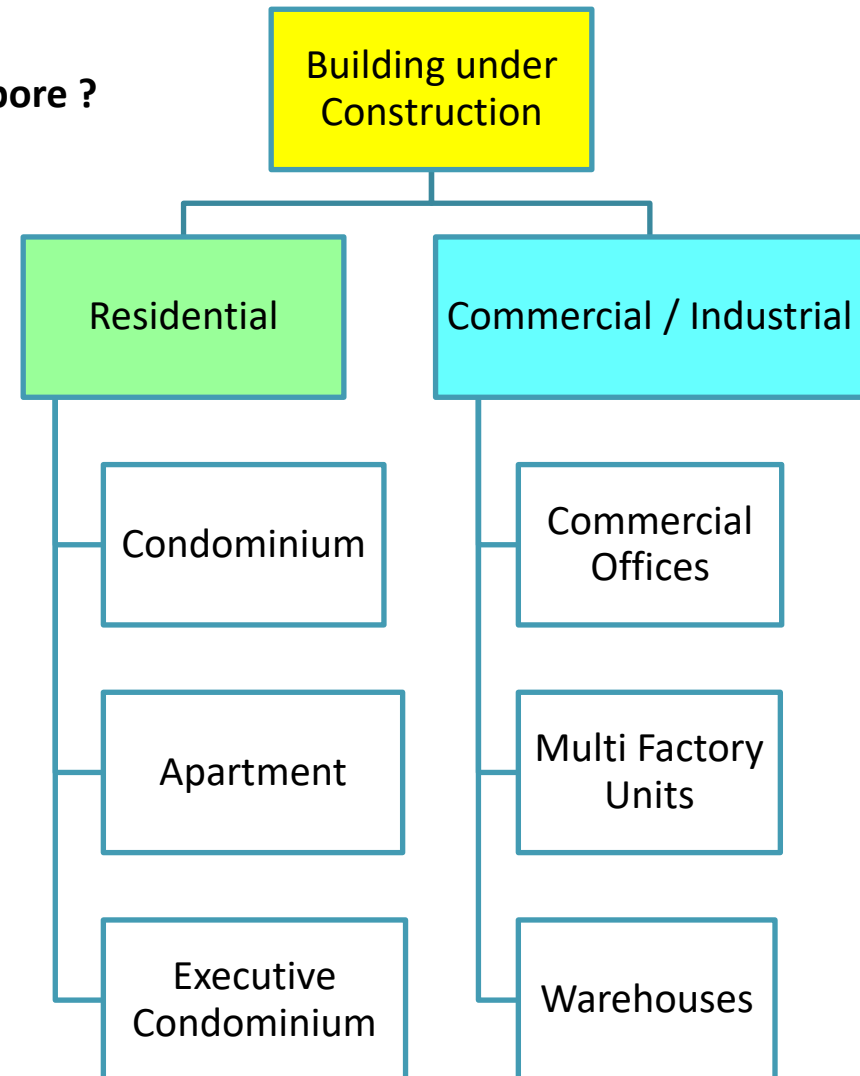
- a) person;
- b) group of persons or partnership;
- c) society;
- d) company; or
- e) limited liability partnership,

but cannot be

- a) **Bank** e.g. DBS, OCBC, UOB, Hong Leong
- b) **Insurer** e.g. AIA, Great Eastern, NTUC Income

Developer must

- Appoints Architect / Professional Engineer
- Apply **Planning Permission** and **Written Permission** to URA



Introduction

Apply for Planning Permission

Planning permission is required for **development** and building works including **changing the use** of premises.

Examples

- Development Application
- Minor Development Application (Renovate existing landed house, demolition works or earthworks)
- Outline Application
- Extension of Planning Permission
- Change of Use

GRANT OF WRITTEN PERMISSION

Under The Planning Act (Cap 232, 1998Ed)

Your Ref : A1002-00003-2012
Our Ref : DC/Area/12/0003_S(M)
Subm No. : 12/004
Date : 17 April 2012

FOR OFFICIAL USE

Decision No : 12/004

W ARCHITECTS
205 HENDERSON ROAD
SINGAPORE 159549
Attn: Mr Mok Wei Wei

PART I - PARTICULARS OF APPLICATION

1. Name and Address of Developer
**LEE KUAN YEW
38 OXLEY ROAD
SINGAPORE 238628**
2. Date application received
29 Mar 2012
3. Description of land which is the subject of the application
**TS20 ON LOT 99909X
38 OXLEY ROAD (RIVER VALLEY PLANNING AREA)**
4. Description of the development proposed in the application

PROPOSED ADDITIONS AND ALTERATIONS TO EXISTING 2-STOREY DETACHED DWELLING HOUSE ON LOT 99909X, TS 20 AT 38 OXLEY ROAD (RIVER VALLEY PLANNING AREA)

PART II - PARTICULARS OF DECISION

1. Planning Permission is granted under Section 14(4) of the Planning Act (Cap 232, 1998Ed) for the application referred to in Part I for the development shown in the plan registered as Plan (B) in DC/AREA/12/2003_S(M) (hereinafter called the "approved plans").
2. The details of the Planning Permission are set out in Part III and the approved plans which are enclosed herewith.
3. The Planning Permission is subject to the conditions¹, if any, set out in Part IV.
4. The additional notes, if any, set out in Part V are for your information.

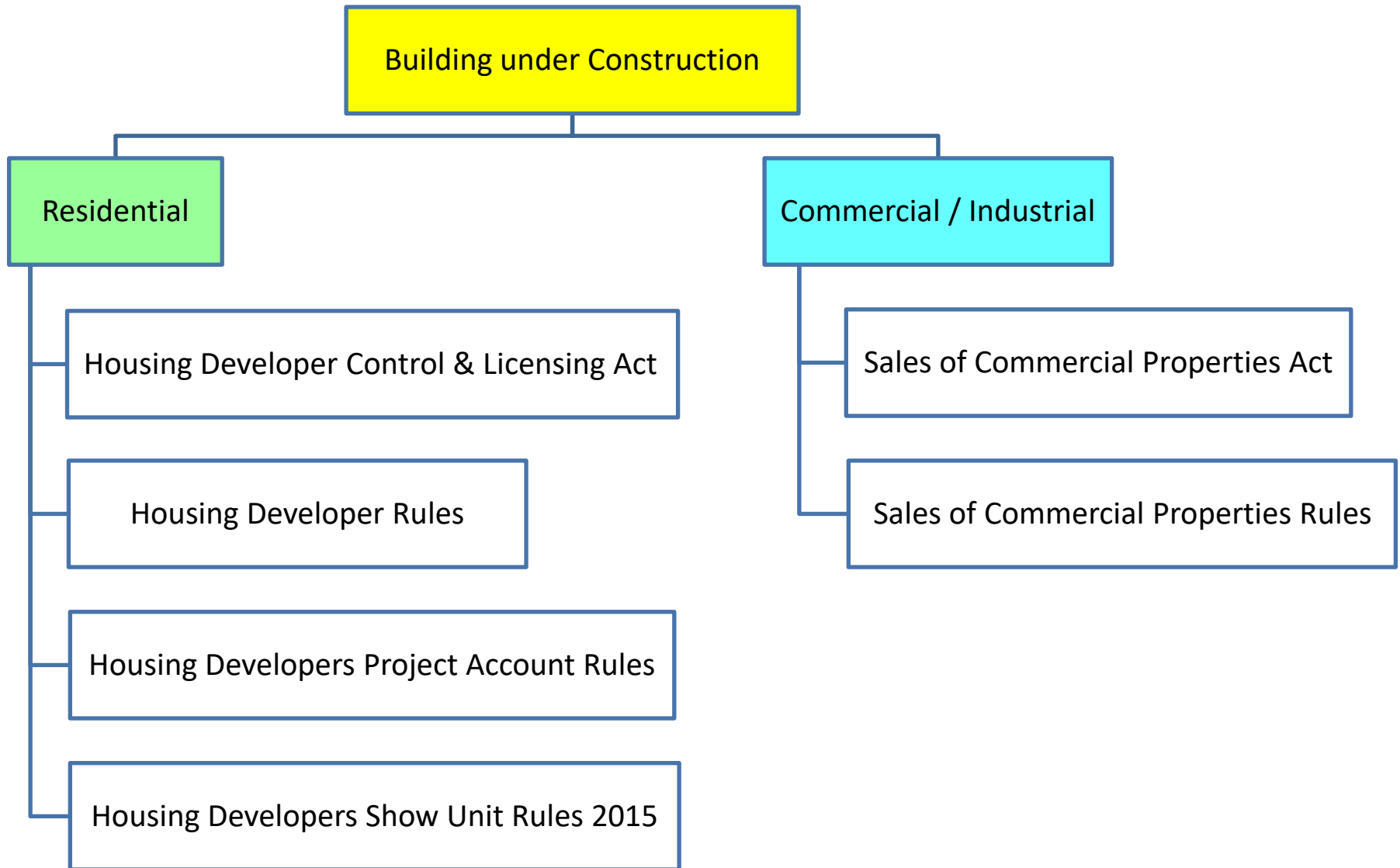
PART III - DETAILS OF THE PLANNING PERMISSION

Development as shown verged red on Proposal Plan (B) for a landed housing as follows:

PLOT (1) - VERGED FOR THE PROPOSED ADDITIONS AND ALTERATIONS TO EXISTING 2-STOREY DETACHED DWELLING HOUSE

¹ The Competent Authority may cancel the permission if any of these conditions is not complied with

2. Are there any restrictions imposed for a real estate developer in Singapore ?



Housing Developers (Control and Licensing) Act

1. “housing development” means the business of —
 - a) developing;
 - b) providing money for developing or for purchase of **more than 4 units** of housing accommodation; or
 - c) developing and providing money for purchase of **more than 4 units** of housing accommodation resulting from such development
2. Controller of Housing → Licenses (Sale License / No Sales License)
 - **Condominium or Apartment**
 - **Executive Condominium or DBSS flat**
 - **Mixed residential & commercial developments**
3. Developer cannot sell any lot unless schedule of strata units with share values has been filed and accepted by Commissioner of Buildings (BCA).
4. Open Project Account
5. Audited Account
 - Every licensed housing developer
 - Submits **to the Controller** within **6 months**
6. Sales information (**per week**) → URA → **Developer Survey System**

Developers to be held to higher standards of accountability

By KELLY NG



Developers with poor track record may have to fulfill more stringent license conditions to obtain a Quality Mark certification for their projects, or be barred from launching units for sale until the authorities are certain that they are committed to meeting the required standards, said National Development Minister Lawrence Wong. Photo: Raj Nadarajan/TODAY

Published 14 NOVEMBER, 2017 UPDATED 14 NOVEMBER, 2017

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SINGAPORE — Developers with poor track record may have to fulfil more stringent license conditions to obtain a Quality Mark certification for their projects, or be barred from launching units for sale until the authorities are certain that they are committed to meeting the required standards, said National Development Minister Lawrence Wong on Tuesday (Nov 14).

Differences between Housing Developers

Sale License Developer

Sell & Construct

Building Control Act
Provide Building Approval
Plan

Building Maintenance and
Strata Management Act
Schedule of strata units
accepted

No Sale License Developer

Construct

T.O.P → Sell

Building Maintenance and
Strata Management Act
Schedule of strata units
accepted

Criteria No 1. – Capital Paid Up Requirement (1st April 2016)

Size of Project (No. of Units)	Minimum Capital Paid Up or Deposit Amount
50 or less units	S\$1 million
51 to 200 units	S\$2 million
201 to 400 units	S\$3 million
More than 400 units	S\$4 million

Criteria No 2. – Track Record (past 5 years)

Developers completed satisfactorily:

- a) a licensed residential project; **or** a reasonably sized residential project overseas
and
- b) Past track record used to determine the size of the new housing project as shown:

Size of Project (Past Record)	Size of New Project
10 or less units	Less than 50 units
11 to 50 units	Less than 200 units
51 to 100 units	Less than 400 units
More than 100 units	No restriction

Sale License Criteria No 3.

Directors are not un-discharged bankrupts

- Person(s) whose name(s) appears in the application form are not un-discharged bankrupts

Other Sale License Criteria:

A copy of the latest audited accounts & verified by a [statutory declaration](#)

A valid provisional or written permission

A [letter](#) from a financial institution confirming that a **Project Account** has been opened

Or

A Banker's Guarantee or Insurer's Guarantee

- An amount equivalent at least **140%** of the total cost of construction of the project
- Together with a [certification](#) of the total cost of construction by the [architect](#)

Note:

Sale License Developers are required to use standard contracts:

1. Option to Purchase
2. Sales and Purchase Agreement

No Sale License Developer Criteria:

- | | |
|---|---|
| 1. Company | |
| 2. Group of persons | |
| 3. Partnership, Limited Partnership or Limited Liability Partnership | |
| 4. Society | |
| 5. Directors are not un-discharged bankrupts <ul style="list-style-type: none">▪ Person(s) whose name(s) appear in the application form are not un-discharged bankrupts | |
| 6. Minimum paid-up capital:
S\$100,000 | <u>Group of persons</u> <ul style="list-style-type: none">▪ A copy of the Agreement (if any) made between the group of persons▪ verified by a statutory declaration.
<u>A society</u> <ul style="list-style-type: none">▪ <u>A</u> copy of the rules or by-laws of the society▪ verified by a statutory declaration. |
| 7. A copy of the latest audited accounts and verified by a statutory declaration | |
| 8. A valid provisional or written permission | |

No-sale licence issued to Normanton Park project

Controller of Housing says Kingsford Huray failed to meet requirements; two other projects had safety, other issues

TUE, APR 16, 2019 - 5:50 AM

JANICE HENG ✉ janiceh@sph.com.sg 🐦 [@JaniceHengBT](https://twitter.com/JaniceHengBT)



He said the Building and Construction Authority (BCA) had found that at the developer's other project - Kingsford Waterbay - some building works such as windows, barriers and common storey shelter "had deviated from requirements under the Building Control Act and Regulations". PHOTO: ST FILE

Singapore

KINGSFORD Huray Development has been hit with a no-sale licence for its project at the former Normanton Park site, prohibiting it from selling units before the Temporary Occupation Permit (TOP) is obtained.

Do you see such situation frequently happens in Singapore ?

Boutique developer wound up in Singapore property market slowdown



1 of 3 The C&C Development properties sitting on the auction block include a double-storey, semi-detached house with basement and attic in Kingswear Avenue (above); a new 2 1/2-storey semi-detached house in Burghley Drive; and an uncompleted 31/2-storey bungalow with a pool and lift in Mimosa Crescent. PHOTOS: COLLIER'S, JLL

PUBLISHED JUL 26, 2016, 5:00 AM SGT



Overseas condominium development

Purposes

- A. To protect the buyers interest
- B. To ensure that the developers complete the project on time
- C. To ensure monies paid out is only for the project

Housing Developers (Project Account) Rules

S9 HDCLA → Every licensed housing developer shall open Project Account
→ **Each development = One project account**
→ One bank or finance company representing each building project

1. Developer open and keep more than one Project Account which
 - (a) building project is developed in phases; or
 - (b) building project comprises units **residential and commercial**.
2. Developer to deposit _____ into Project Account
 - **Purchasers' money**
 - **Construction loans**
3. Developer → Bankrupt
 - **not part of the property of licensed housing developer**
 - Project Account shall vest in the **official receiver, trustee in bankruptcy or liquidator**
4. Bank or finance company which maintained Project Account
 - **shall not release** any money unless for specific purposes
5. Withdrawing Money from Project Account
 - i. Building Project Completed → CSC & Legal Completion for all units or
 - ii. After grant of T.O.P or
 - iii. Banker's guarantee in lieu of money and amounts or
 - iv. Withdrawal of surplus money where there is no subsisting mortgage

PREMIUM

URA examining project accounts of two delayed condos



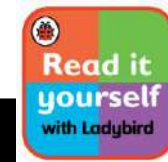
The construction of Sycamore Tree (above) in Joo Chiat and Laurel Tree at Hillview Terrace has been delayed for more than two years. ST FILE PHOTO.

PUBLISHED: APR 28, 2019, 5:00 AM SGT



It is checking whether money for projects has been misused, and if there were other breaches

General Purposes of Withdrawing Money from Project Account



Withdrawal Purpose (Supported by documentary proof)

- 1 Property Tax
- 2 Mortgage Stamp Duty (Land)
- 3 Legal Fees (Sales & Purchase Units, Construction Loan, matters relate to project)
- 4 Insurance premiums, architect, engineer, quantity surveyor and consultant's fees
- 5 Costs → Foundation Work, Soil Investigation, Earth Works, Site Supervision in respect of project
- 6 Supply of electricity and water and installation charges and other fees and deposits to the Public Utilities Board
- 7 Deposits and charges → Government departments
- 8 Refund of booking fee or progress payments pursuant to sale and purchase of any unit
- 9 Cost of construction of the building project
- 10 Interest and other charges on any loan for the building project
- 11 Capital sum to redeem in full or partially any loan for the construction of the building project;
- 12 Administrative, marketing and advertising expenses incurred on the building project subject to a maximum of **5%** of the total cost of construction
- 13 GST

Housing Developers (Show Unit) Rules 2015

Key Requirements:

1. Meet URA mandatory requirements for show unit
 - No later than 5 clear working days before the show unit is made available for viewing
2. Build actual depicted unit
 - Declaration → Show unit(s) is built in accordance with the Show Unit Rules
3. Drawn-to-scale floor plan of show unit
4. Subsequent changes to approved building plan (Changes made within 3 days)
5. No misrepresentation
6. Household shelter
7. Cupboards, vanity units, cabinets and wardrobes
8. Materials, finishes, fittings, equipment, installation and appliances
9. Partial show unit (No showing to buyer unless obtain approval)
10. Information, map, plan and model
 - Draw to scale
 - 500 metre radius
 - Location of the building project accurately



Housing Developers (Show Unit) Rules 2015

Building project model must show:

1. all buildings and communal facilities
 - Clubhouse
 - Swimming pool
 - Garden
 - Barbeque pit
 - Guard house
 - Electrical substation and
 - Bin centre
2. Drawn Scale
3. Approved building plan
 - **Approval number**
 - **Approval date**



Housing Developers (Show Unit) Rules 2015

Key Requirements - Example:

1. Show Flat Floor Area = Actual Unit Floor Area
2. Show Flat Wall Thickness = Actual Unit Wall Thickness
3. If show flat wall is removed, walls thickness, position and width must be indicated



Housing Developers Rules

1. Mandatory particulars in advertisements

Any **advertisement** must include:

- a) Name and Licence Number of Housing Developer
- b) Tenure of the land and Encumbrances
- c) Expected Vacant Possession Date
- d) Expected date of legal title conveyed to the purchasers
- e) Location of the housing project with Lot number and Mukim/Town Subdivision

2. Prohibited particulars in advertisements

An **advertisement** of a housing project shall not contain:

- a) the patronage of the President or of any of the members of his family;
- b) any connection with any Government department, statutory body or public building or place;
or
- c) any attribute to which the housing developer cannot genuinely make a claim.

3. No false or misleading information in advertisement

Housing Developers Rules – Payment Matters

1. Purchaser pays **5% booking fee** for Option to Purchase (Form 2)
2. Booking Fee → Written in favour **Project Account**
3. Non Exercise of Option:
 - a) Developers forfeits **25%** of Booking Fee
 - b) Refund **75%** of Booking Fee **within 4 weeks** (**Purchaser's written notice**)
4. Booking Fee is not made to Project Account (**e.g. bounced cheque**)
 - OTP shall be null and void
 - Developer gives 14 days notice in writing to Intending Purchaser
 - Purchaser pays **25%** of the Booking Fee within 14 days notice as a debt
5. Progressive Payment

Sales & Purchase Agreement - Progressive Payment

	Payment Stages	Percentage of Purchase Price
1.	Upon granting of Option to Purchase	5% (Cash)
2.	Upon exercising Option to Purchase (8 weeks from date of option)	15% (Cash/CPF)
3.	Completion of foundation works	10%
4.	Completion of reinforced concrete works of unit	10%
5.	Completion of partition walls relating to the Unit	5%
6.	Completion of ceiling / roofing of ceiling	5%
7.	Completion of door sub-frames/door frames and window frames are in position, and that the electrical wiring (without fittings), the internal plastering and the plumbing of the unit	5%
8.	Completion of the car park, roads and drains	5%
9.	Within 14 days after the Purchaser receives: (a) Receive either TOP or CSC (Project Account Closed) (b) Receive notice that Building, all roads, drainage and sewerage works have been completed and that water, electricity supplies and gas supplies (if any) have been connected to the Building	25%
10.	Legal Completion (Singapore Academy of Law as stakeholders – Defects Liability)	15%

Sales & Purchase Agreement - Progressive Payment

Legal Completion	Scenario 1: Completion Date takes place before the issue of the CSC a) 2% pays to Developer b) 13% pays to Singapore Academy of Law (stakeholders): (i) Received CSC within 7 days → 8% (ii) Final Payment Date → 5% Or Scenario 2: CSC is issued before the Completion Date, a) 8% pays to Developer b) 5% pays to Singapore Academy of Law (stakeholders) c) On Completion date, 2% pays to Developer	15%
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Housing Developers Rules Forms (Standard Contracts)

- Form 1 Register of Bookings (For Developer)
- Form 2 Option to Purchase
- Form 3 Particulars, documents and information to be provided to intending purchaser before issue of option to purchase
- Form 4 Sales & Purchase Agreement (Non Strata)
- Form 5 Sales & Purchase Agreement (Strata)

FORM 1

Rule 9(1)

Register Of Bookings

Housing Developer's Licence Number: _____

Serial No.	Name and address of Intending Purchaser	I/C No. or Passport No.	Nationality (Indicate "PR" for permanent resident and "NPR" for non-permanent resident against nationality of foreigner)	Address as allotted by the Comptroller of Property Tax (where not available Private Lot or Unit No.)	Land Area of Private Lot or Floor Area of Unit	Purchase Price of Property	Date Option given	Option fee paid \$	Date of Delivery of Execution Copies of Sale and Purchase Agreement and Title Deeds to Intending Purchaser	Expiry Date of Option	Option lapsed and money refunded on (where applicable)	Refund Cheque No. (where applicable)	Remarks

FORM 3

*Particulars, Documents & Information to be Provided
to Intending Purchaser before Issue of OTP*

1. Developer shall:

- Provide Form 3 to Purchaser **before acceptance** of booking fee
- Obtain **Purchaser's written acknowledgment** that developer has complied to information of Form 3.

Form 3 - Particulars, Documents & Information to be Provided to Intending Purchaser before Issue of OTP

Information on Property

1. Property Address
2. For landed property:
[Estimated Land Area](#)
3. For strata-titled property:
 - a) [Estimated total floor area](#)
 - b) Description of all spaces for different uses



Estimated Total Floor Area of the property		__ m2
Estimated Floor Area of —		__ m2
Bedroom 1 ¹ (including attached bathroom and bay windows, if any)		
Living/Dining area/2 Kitchen (including bay windows, if any)		
² Bathroom / toilet (including bay windows, if any)		__ m2
² Utility room or area		__ m2
² Household shelter		__ m2
² Balconies		__ m2
² Bay windows (not being part of any room listed above)		__ m2
² Private enclosed spaces		__ m2
² Roof terraces		__ m2
² All planter boxes / areas forming part of the property		__ m2
² Air-conditioner ledges		__ m2
² Void areas		__ m2
² Others (e.g. foyer) — please specify		__ m2

¹Please add other bedrooms if applicable.

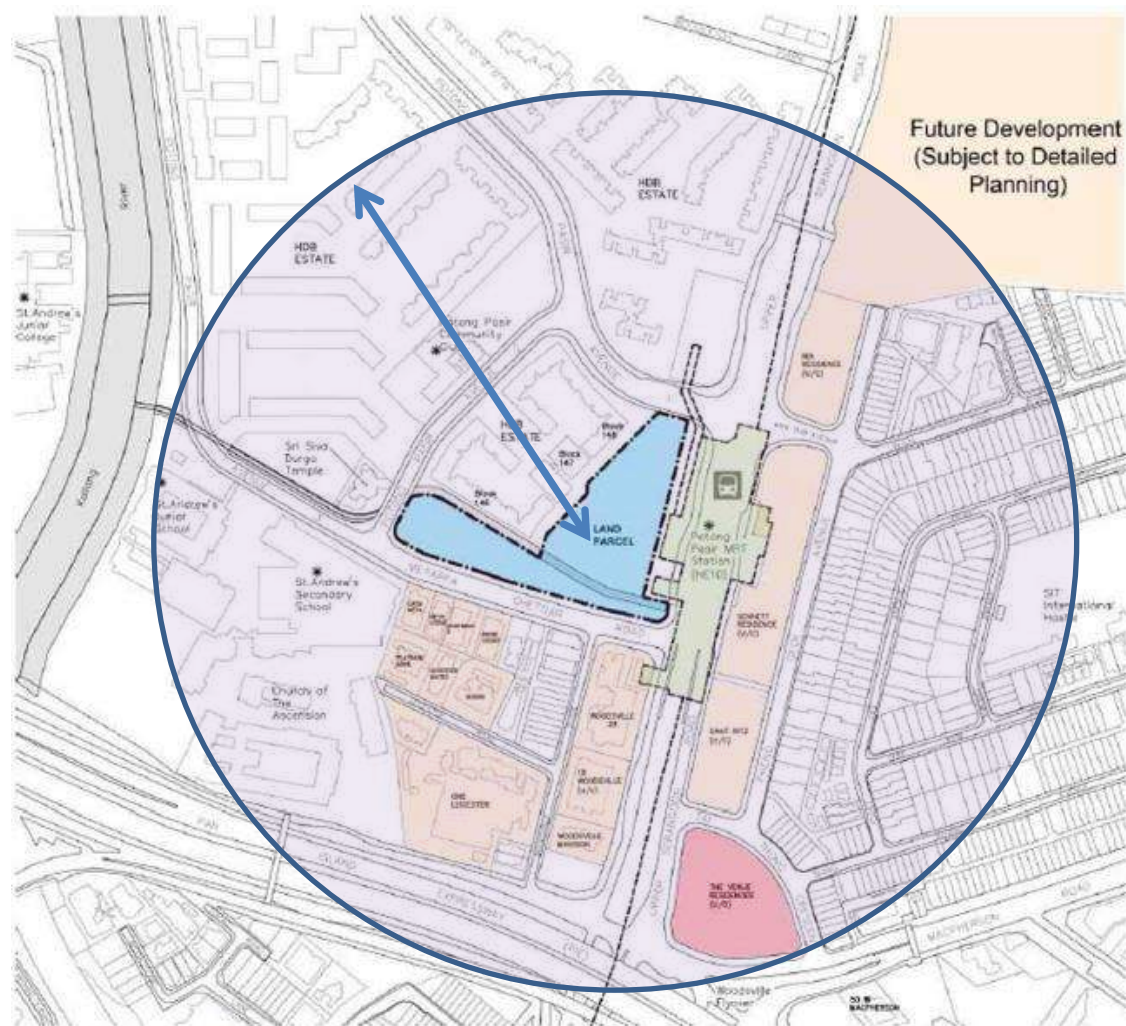
²Delete if not applicable.

Form 3 - Particulars, Documents & Information to be Provided to Intending Purchaser before Issue of OTP

Property Plans

1. Drawn-to-scale [location plan](#) showing;
2. Names of streets nearby, prominent buildings, facilities within a [500m radius](#) of the housing project

E.g. MRT / LRT stations, places of worship, public parks, schools, commercial / industrial buildings, hdb flats



Source: URA, Square Foot Research



Form 3 - Particulars, Documents & Information to be Provided to Intending Purchaser before Issue of OTP

Drawn-to-scale site plan showing ;

- Approved buildings and where applicable, communal facilities

E.g. guard house, car parks, swimming pool, vehicular entrance / exit, etc.



- 1 Aegean Arrival
- 2 Lap Pool
- 3 Kid's Pool
- 4 Lounge Deck
- 5 Aegean Splashes
- 6 Changing Rooms
- 7 Clubhouse Gymnasium
- 8 Drift-Away Hammocks
- 9 Grand Lawn
- 10 25m Lap Pool & Aqua Gym
- 11 Reflective Pool
- 12 The Gallery
- 13 Tennis Court
- 14 Alfresco BBQ Plaza
- 15 Kiddie Playground
- 16 Fitness Zone
- 17 Sunken Pavilion
- 18 Verdure Berms



Form 3 - Particulars, Documents & Information to be Provided to Intending Purchaser before Issue of OTP

Drawn-to-scale floor plan of the property (strata-titled property)



3-BEDROOM

TYPE B1p

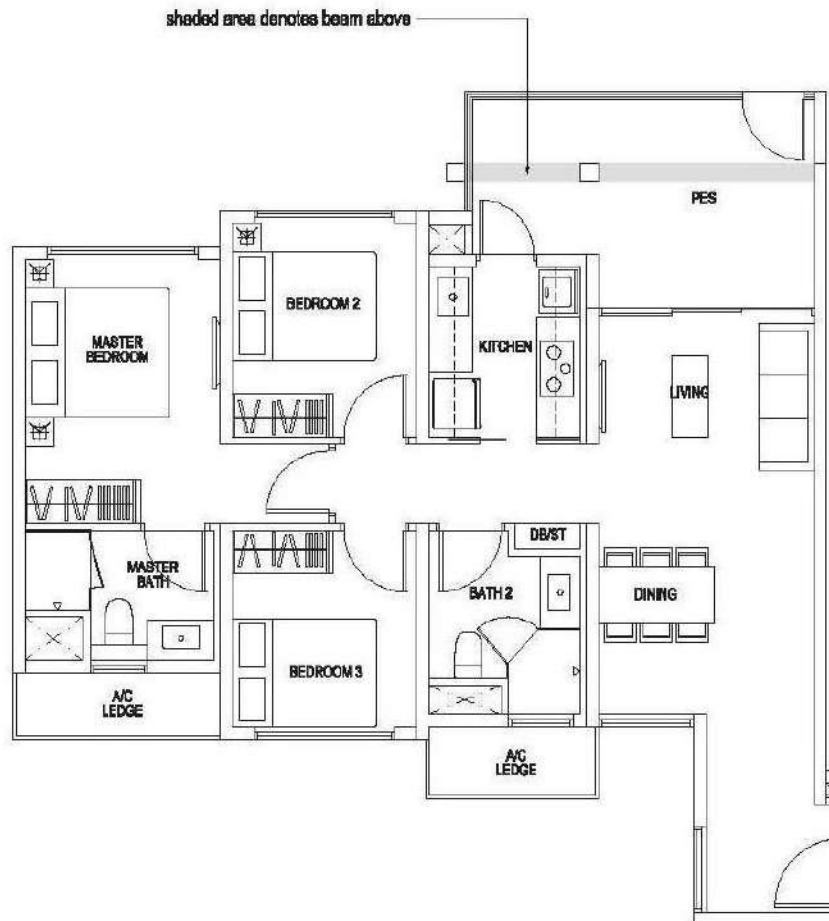
92 sq m / 990 sq ft

BLK 152

#01-15

BLK 156

#01-31



Form 3 - Particulars, Documents & Information to be Provided to Intending Purchaser before Issue of OTP

Specifications of the Building

- S&P Agreement Form 4 or Form 5.

SPECIFICATIONS

Sample



1.0 FOUNDATION Pre-cast, steel and/or bored reinforced concrete piles. 2.0 SUPERSTRUCTURE Pre-cast and/or cast-in-situ reinforced concrete and/or structural steel. 3.0 WALLS (a) External Walls: In-situ and/or pre-cast reinforced concrete wall and/or masonry. (b) Internal Walls: Lightweight concrete panels/blocks and/or pre-cast wall and/or drywall partition system and/or masonry with cement and sand plaster and/or skim coat (where applicable). 4.0 ROOF Pre-cast and/or cast-in-situ reinforced concrete roof with appropriate insulation and water-proofing system. 5.0 CEILING (a) Living, Dining, Bedrooms, Studio, Kitchenette, Dry Kitchen (except for Type PH4), Walk-in Wardrobe, Balcony, Private Enclosed Space (PES), Yard, Utility, Water Closet (WC), Store, where applicable: - Concrete slab with skim coat and/or plasterboard box-up to designated areas with paint finish. (b) Foyer, Corridor leading to Bedrooms, Bathrooms, Kitchen, Dry Kitchen (for Type PH4 only), where applicable: - Plasterboard ceiling with paint finish. 6.0 FINISHES a) Wall (i) External Include internal side of PES, Balcony, Open Roof Terrace, Air-con (A/C) Ledge, Reinforced Concrete (RC) Ledge, Yard, and other walls exposed to the exterior weather, where applicable: - Exterior paint finish. (ii) Internal Foyer, Living, Dining, Bedrooms, Corridor leading to Bedrooms, Studio, Store, Walk-in Wardrobe, Utility, Yard, where applicable: - Paint finish up to false ceiling height and on exposed surfaces only. Bathrooms, WC, where applicable: - Tiles up to false ceiling height and on exposed surfaces only. Kitchen, Dry Kitchen, Kitchenette, where applicable: - Paint finish and/or back-painted glass and/or tiles up to false ceiling height on exposed surfaces only. NOTE: No tiles behind long bath and mirror. b) Floor (i) Foyer, Living, Dining, Corridor leading	to Bedrooms, Bathrooms, Kitchen, Dry Kitchen, Kitchenette, Yard, WC, Utility, Private Enclosed Space (PES), Store, Balcony, Open Roof Terrace, where applicable: - Tiles. (ii) Bedrooms, Studio, Walk-in Wardrobe: - Laminated flooring. (iii) Internal Staircases: - Timber flooring. (iv) A/C Ledge, RC Ledge where applicable: - Scribed finish. 7.0 WINDOWS Aluminium framed window with tinted/clear glass. 8.0 DOORS (a) Main Entrance, Secondary Entrance (for Type PH only): - Approved fire-rated timber door. (b) Bedrooms, Studio, Store: - Timber swing door. (c) Bathrooms: - Timber sliding / swing door. (d) Kitchen, Dry Kitchen: - Glass sliding / swing door, where applicable. (e) Living, Dining, Master Bedroom, Junior Master Bedroom, Bedroom to PES, Balcony, Open Roof Terrace, where applicable: - Aluminium framed sliding / swing / sliding folding door with glazing. (f) Yard: - Aluminium framed glass swing door. (g) Utility, WC: - Aluminium bi-fold door with acrylic panels. (h) Good quality locksets and ironmongery shall be provided to all doors. 9.0 SANITARY FITTINGS (a) Master Bath - 1 long bath with bath mixer and spout (For Type D, E and PH) - 1 shower cubicle and 1 shower set complete with shower mixer - 1 wash basin and basin mixer - 1 water closet - 1 toilet paper holder - 1 mirror - 1 vanity cabinet. (b) Junior Master Bath - 1 long bath with bath mixer and spout - 1 shower cubicle and 1 shower set complete with shower mixer - 1 wash basin and basin mixer - 1 water closet - 1 toilet paper holder - 1 mirror - 1 vanity cabinet. (c) Other Bathrooms - 1 shower cubicle and 1 shower set complete with shower mixer - 1 wash basin and basin mixer - 1 water closet - 1 toilet paper holder - 1 mirror - 1 vanity cabinet.	(d) Water Closet - 1 hand shower set and shower mixer - 1 wash basin with cold water tap - 1 water closet - 1 toilet paper holder. (e) Yard, Private Enclosed Space (PES), Open Roof Terrace (for Type PH4 & PH5 only) - 1 bib tap. 10.0 ELECTRICAL INSTALLATION (a) Electrical wiring below false ceiling within the Apartments shall generally be concealed where possible. Electrical wiring above false ceiling and main entrance corridor closet shall be in exposed tray, conduits or trunking. (b) Refer to Electrical Schedule. 11.0 TV / Telephone points Refer to Electrical Schedule. 12.0 LIGHTNING PROTECTION Lightning protection system shall be provided in accordance with Singapore Standard SS 555. 13.0 PAINTING (a) External walls: - Textured coating and paint to designated areas. (b) Internal walls: - Emulsion paint. 14.0 WATERPROOFING Waterproofing shall be provided for Bathrooms, Kitchen, Dry Kitchen, Kitchenette, Yard, WC, PES, Open Roof Terrace, Planter, Swimming Pool, Water	Features, Swimming Pool Pump Room, RC Flat Roof, First Storey Deck, Basement Floor and Wall, Changing rooms, where applicable. 15.0 DRIVEWAY AND CAR PARK (a) Surface Driveway: - Stone / pavers / concrete to external driveway. (b) Basement Car Park and ramp to Basement Car Park: - Reinforced concrete slab with floor hardener. 16.0 RECREATION FACILITIES Arrival 1. Guard House 2. Entrance Court 3. Water Feature 4. Arrival Lounge. Pools 5. 50m Lap Pool 6. Cascading Water Wall 7. Sun Deck 8. Changing Room with Steam Baths 9. Family Pool 10. Pool Deck 11. Aqua Gym 12. Jacuzzi 13. Cabana 14. Palm Alcove. Jewel Court 15. Cloud Sculpture 16. Sparkle Water Play Clubhouse 17. Clubhouse
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ELECTRICAL SCHEDULE

DESCRIPTION	TYPE A1 - A4	TYPE B1 - B10	TYPE C1 - C3	TYPE C4 - C11	TYPE D1 - D3	TYPE D4	TYPE E	TYPE PH1 - PH3	TYPE PH4 & PH5
Lighting Point	8	11	14	18	21	21	28	35	40
Bell Push & Bell Point	1	1	1	1	1	1	1	1	1
TV Outlet	2	3	4	4	5	5	6	7	7
Telephone Outlet	2	3	4	4	5	5	5	6	6
Data Outlet	2	3	4	4	5	5	5	6	6
18A Switch Socket Outlet	12	15	20	22	26	26	29	34	37
Cooker Hood Point	1	1	1	1	1	2	1	1	1
Cooker Hob Point	1	1	1	1	1	2	1	1	1
Microwave / Oven Point	1	1	1	1	2	2	2	2	2
Fridge Point	1	1	1	1	1	2	1	1	1
Washing Machine / Dryer Point	1	1	1	1	1	2	1	1	1
Aircon Isolator	2	2	2	2	2	3	3	3	3
Gas Water Heater Point	1	1	1	1	1	1	1	1	1

Form 3 - Particulars, Documents & Information to be Provided to Intending Purchaser before Issue of OTP

Track Record of Housing Developer

- Statement indicating whether developer has carried out / completed any project in Singapore.
- The description & location of one or more of such development projects.



Amendments to Prescribed S&P Agreement

- Copy of all amendments, deletions and alterations, if any, as approved by the Controller.

Conditions, Restrictions & Requirements Imposed by Authorities on Housing Project

- Copy of all conditions, restrictions and requirements,
- Imposed by the relevant authorities to be complied with & observed by the residents after its completion.

FORM 2

Option to Purchase

Option to Purchase

1. Option date
2. Vendor: [*Name / Address / Housing Developer's License No.*]
3. Intending Purchaser Information
4. Property: [*Type / Storey / Unit No. (Plan) / Housing Project / Lot No – Mk /TS*]
5. Address of Property (if known):
6. Tenure of Land
7. Encumbrances on the Land
8. Estimated Land Area
9. Estimated Strata Area
10. **Number of units in the Housing Project**
11. **Number of carparking spaces in the Housing Project**
12. Purchase Price: S\$_____
13. Unit Purchase Price: S\$_____ per square metre
14. Booking Fee: S\$____ (____ % of Purchase Price)
15. Date of Approval of Building Plans
16. No. of Building Plans Approved by
17. Commissioner of Building Control: BP No. _____
18. **Vacant Possession Date: _____ (the latest date for delivery of vacant possession of the Property)**
19. Latest Date of giving Notice to Complete sale and purchase
 - **_____ or 3 years after the date of delivery of vacant possession of the Property, whichever is the earlier**

Option to Purchase (Important Terms & Conditions)

1. Obligation Vendors

- Delivered Title Deeds and Sales & Purchase Agreement within **14 days**
- Property is sold subjected to terms and condition of Sales & Purchase Agreement

2. Expiry of Option

- **Expire 3 weeks** after the date of the delivery to purchaser **or**
- Give notice to developer that purchaser does not wish to exercise this Option
→ immediate expired.

3. Exercise of Option

- a) Purchaser must do the following before Option To Purchase expires:
 - Sign all copies of Sale & Purchase Agreement; and
 - Return all S&P to Developer
- b) Developer sign and return **one copy** of Sale & Purchase Agreement to Purchaser within **14 days**

4. Sale subject to Shareholders' Approval

- Certain purchaser pursuant to the Companies Act (Cap. 50) or the Singapore Exchange Limited's Securities Trading Listing Manual
- OTP → Conditional till approval from developer's board of director, shareholders or auditors
- **Not approved → Null & Void → Refund all deposit**

Option to Purchase (Important Terms & Conditions)

5. Rebate, reimbursement, allowance, discount, payment, voucher and other benefit for Intending Purchaser
 - Disclosed to URA → Developer Survey System
6. Information of Strata Unit
 - Share Values
 - Maintenance Charges
 - Exclusive benefit of common property and charges if any
7. No Assignment of OTP - With effect from 28 September 2020
 - Intending Purchaser is not allowed to assign or transfer this Option.
 - With valid reasons, Controller can extend validity period of the OTP up to 12 weeks from the OTP date

Developers no longer allowed to reissue option to purchase to buyers



Property analysts said that the rule change on a buyer's option to purchase would have a cooling effect on the property market.

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- Developers will no longer be able to extend the period of a buyer's option to purchase without URA's approval
- For a small fee, buyers had been given extra time by developers to round up cash for a purchase
- Analysts said that this move will have a cooling effect on the property market

Option to Purchase (Important Terms & Conditions)

8. Sale to Foreign Purchaser

- a) Exercise OTP
- b) Within **3 weeks after exercising OTP**, apply to Controller of Residential Property for approval
- c) and **Notify** Developer within **2 weeks after receiving** the result
- d) For whatever reason **authority disapproved** the sale and purchase
 - **12 weeks** after the exercise date of OTP (**application period**)
 - it shall be **null and void** subjected to:
 - Purchaser submits **evidence** in **2 weeks** after **Application Period**
 - Developer shall refund **all money** within **4 weeks** after receiving the refusal evidence and thereafter neither party shall have any claims against the other

Note:

1. Purchaser cannot produce any evidence in 2 weeks,
 - developer shall **forfeit 25%** and **refund 75%** of booking fee money.
2. Developer shall refund the money within 4 weeks after the said 2 weeks and thereafter neither party shall have any claims against the other.

FORM 4 or 5

Sales & Purchase Agreement

Sale & Purchase Agreement

1. General Terms
2. Agreement for Sale and Purchase
 - Tenure
3. Terms of Sales
 - **Private Treaty**
 - Terms in Form 4 or 5
 - **Law Society of Singapore's Conditions of Sale 2012 / 2020**
 - Sales to Foreigner Purchase
 - Sales subject shareholder approval
4. Purchase Price and Benefits (*As per discussion in OTP topic*)
5. Payment Schedule (*refer to earlier lesson slides*)
6. **Late Payment of Installments**
7. **Repudiation by Purchaser**
8. Title and share value and share of contribution for limited common property
9. Planning Approval (**Form 4 only**)

Sale & Purchase Agreement



10. **Vendors Obligations**

11. **Purchaser Obligations**

12. **Title Surveys**

13. **Maintenance Charges**

14. **Delivery of Possession**

15. **Changes from Specifications and Plan**

16. **Certificate of Statutory Completion**

17. **Completion**

18. **Defects Liability Period**

19. **Errors, Omission and Misdescription**

20. **Easement (Form 4 only)**

21. **Restrictive Covenants (Form 4 only)**

22. **Taxes**

23. **Mediation**

24. **Sub Purchaser Rights**

25. **Sub-purchaser may exercise rights of Purchaser**

26. **Exclusion of Contracts (Rights of Third Parties) Act**

Sale & Purchase Agreement

Late Payment of Installments

1. If Purchaser fails to pay any instalment and shall pay interest on the unpaid amount until:
 - a) unpaid amount is paid; or
 - b) expiration of repudiation notice periodwhichever first occurs
2. Interest on the unpaid amount shall commence on the day immediately
 - a) after expiry of the relevant period or
 - b) due date for payment
3. The interest shall be calculated on a daily basis at the rate of 2% per annum above the Base Rate.

Exercise

Ali bought a condominium from license developer at \$1,000,000. He is supposed to pay developer on 1st Jan 2018 for completion of _____. However, he delayed and paid on 15th Jan 2018. Currently, the base lending rate from DBS, UOB and OCBC is 2% per annum.

1. Developer has the right to treat repudiation by Purchaser if:

- a) any part of any instalment or
- b) any amount of the Purchase Price or
- c) interest

remains unpaid for more than 14 days after the expiry of the relevant period or the due date for payment of the instalment or amount

2. Developer must give not less than 21 days' notice in writing to treat contract as repudiated.

3. After notice period expired → Annulled, unless full payment was made within 21 days

4. Developer's rights:

- a) Re-enter and resume possession of the Unit (Vacant possession → Purchaser)
- b) Resell the Unit
- c) Recover from instalments, amounts, all interest, property tax, maintenance charges, other amounts owing, unpaid costs and expenses legal or otherwise incurred by the developer in relation to the recovery of possession of the Unit
- d) forfeit and keep 20% of the Purchase Price from the instalments (excluding interest) previously paid by the Purchaser; and

4. Developer's Right:
 - e) if instalments (excluding interest) previously paid by Purchaser are **insufficient** to cover the amounts referred to 4(c) and 4(d), developer can claim and recover from Purchaser **any shortfall in such amounts together with all costs and expenses** (including legal costs) incurred by the developer in relation to such claim.
5. The developer must **refund balance of amount after deduction referred to 4(c) and 4(d)**
 - a) provided that Purchaser furnished **evidence** that all caveats or encumbrances registered or lodged have been withdrawn or cancelled.
 - b) Refund shall take place not more than 21 days after one of the following dates:
 - the date this Agreement is annulled; **or**
 - where vacant possession of the Unit has been delivered to Purchaser, the date vacant possession of the Unit is returned to or recovered by the Developer**whichever is later**

Upon such refund to the Purchaser, neither party shall have any further claim against each other.



1. The developer must build:

- as soon as possible
- Unit and common property in a **good and workmanlike** manner
- build the roads, driveways, drains, culverts and sewerage mains and gas mains
- lay all necessary water, electricity, sewerage mains and gas mains to serve the unit

2. The developer must:

- a) obtain all **consents, approvals and**
- b) **must comply with all the requirements** of the Commissioner of Building Control and other relevant authorities for the construction of the Building and Housing Project
- c) pay to obtain:
 - **Subsidiary Strata Certificate of Title**
 - Approval of Competent Authority under the Planning Act for **subdivision** of the Housing Project

Sale & Purchase Agreement

Purchaser Obligation

1. To pay fees for turning on for the supply of water, electricity and gas
2. Should CSC has not been issued, the purchaser shall not without prior developer's written consent to carry out any **alterations or additions**

Sale & Purchase Agreement

Title Surveys

The developer and purchaser shall pay expenses for the title surveys

Developer - 50%

Purchasers - 50% (apportioned by share value)

Sale & Purchase Agreement

Maintenance Charges

The Purchaser shall pay to developer maintenance charges starting on:

- a) the date the developer actually delivers vacant possession of Unit; or
- b) the 15th day after receiving T.O.P

whichever is the earlier.

If any part of the maintenance charges is not paid at the end of **14 days** after it is due, the Purchaser must then pay interest calculated on a daily basis at 2% per annum above the Base Rate.

Sale & Purchase Agreement

Delivery of Possession

1. Developer must deliver vacant possession of Unit to Purchaser **within both** of following dates:
 - a) no later than Contract date (the Vacant Possession Date);
 - b) no later than **21 days** commencing after payment date for T.O.P
2. Before delivering vacant possession of the unit, the developer must ensure
 - a) Unit is completed and **fit for occupation** **and**
 - b) Must remove all surplus material and rubbish
3. Developer must deliver _____ upon vacant possession of the Unit
 - a) a Notice of Vacant Possession (specifying the date)
 - b) a Homeowner User Manual relating to the prefabricated bathroom
4. Developer shall pay to purchaser liquidated damages if vacant possession is delayed.
 - a) **Liquidated damages** are calculated on a daily basis at the rate of **10% per annum** on the total sum of all the instalments paid by the Purchaser towards the Purchase Price and are payable commencing on the date after vacant possession of the Unit is delivered to the Purchaser.
 - b) Any liquidated damages payable may be deducted from any instalment of the Purchase Price due to the developer.
5. Any delay of vacant possession by purchaser, purchaser has not make payment upon T.O.P or any reason for which developer is not responsible, the developer is **not liable** to pay liquidated damages

Sale & Purchase Agreement

Changes from Specifications and Plans

1. The developer shall ensure that no changes to:
 - specifications or approved plans for the unit
 - location, size and dimensions relating to facilities comprised in the common property of the Housing Project.
2. If changes are required, developers must give notice to all Purchasers.
3. Any purchaser can object within 21 days after the date of the notice.
 - Developer may give Purchaser not less than 21 days' notice in writing of developer's intention to annul this Agreement.
 - Once this Agreement is annulled, the developer shall refund (without interest) to the Purchaser all instalments of the Purchase Price
4. Unless the changes is required and approved by the Commissioner of Building Control and other relevant authorities and no objection in writing is received from any of the purchasers of these sold units, the Purchaser need not pay for the cost of any such changes.

Sale & Purchase Agreement

Legal Completion

1. The developer must give to the Purchaser a Notice to Complete by:
 - a) Contract Date
 - b) 3 years after the date of delivery of vacant possession of the Unit
whichever is the earlier
2. Completion must take place 14 days after Purchaser receives Notice to Complete at office of developer's solicitors
3. Developer must execute a proper conveyance & deliver a duplicate Subsidiary Strata Certificate of Title
4. The conveyance shall be prepared by and at the expense of the Purchaser
5. If for any reason the developer does not give a Notice to Complete by the date specified in contract, developer must pay to the Purchaser liquidated damages.
6. Liquidated damages are:
 - calculated on a daily basis at the rate of 10% per annum on the total instalments paid towards the Purchase Price
 - Commence on the date immediately after date specified as above until new Notice to Complete date is actually given
 - deducted from any instalment of Purchase Price

1. Developer must make good any defect at his own cost and expense.
2. Defects Liability Period is based on **12 months** after —
 - a) the date the Vendor actually delivers vacant possession of the Unit to the Purchaser;
or
 - b) the 15th day after T.O.P
whichever is the earlier
3. Developer must make good any such defect within **one month** from Purchaser's **notice**
4. Failing which the Purchaser may notify the Developer in writing of the following:
 - a) **Estimated cost** of rectification works; and
 - b) If developer fails to carry out those works within **14 days immediately after the date of the notice**, Purchaser shall carry out the rectification works.
5. Purchaser may deduct the cost of those rectification works from the sum held by the **Singapore Academy of Law**

1. Any error, omission or misdescription of the **property area** does not invalidate the contract or give Purchaser the right to be discharged from the purchase
2. But Purchaser has **the right to an adjustment of the Purchase Price**
3. The purchase price shall be reduced as follows:

Deficiency	Reduction
3% or lesser of area	No reduction
More than 3% of the area	Reduction at the rate of Unit Purchase Price for every square metre (or part thereof) of deficiency which is in excess of 3% of the area stated in this Agreement.

4. Any reduction of the Purchase Price shall be made on Completion Date
5. Developer **does not have the right** to any **adjustment in the Purchase Price** if the area of the unit is **more** than the area stated in contract

Validity of Housing Developer License

1. A housing developer license will cease when **residential** project is completed with issuance of:
 - **Certificate of Statutory Completion** by Commissioner of Building Control
 - **Certificate of Title** or **Subsidiary Strata Certificate of Titles** by Registrar of Titles
 - Strata Lease Plan for all DBSS flats
2. When a license ceases, developer will not be subjected to Housing Developer Control & Licensing Act in relation to the completed housing project.

Assignment / Sub-Sale of Property (Under Construction)

1. Assignment of Option To Purchase is **not allowed**
2. Assignment can only be done after the Sales and Purchase Agreement has exercised
(S16 Housing Developers Rules)
3. Developer **cannot refuse** the assignment.
 - Charge sub-purchaser a fee not exceeding **\$200** and
 - Recover solicitor reimbursements costs up to **\$400**
4. Developer shall enter a **new sale and purchase agreement** with the assignee
 - within **3 weeks** after receiving assignee's written notice.
5. Sub-purchaser cannot change any terms & conditions of the original S&P Agreement.

Sale of Commercial Properties Act – Commercial or Industrial Properties

1. Regulate sales of separate commercial properties units.
2. Apply to following situations:
 - a) Buildings under construction
 - b) Sale of more than 4 uncompleted non-residential properties
 - Before sale, Developer requires Commissioner of Building Control's approval for construction
 - c) Addition or Alteration works carried out on existing buildings
3. Under this law, commercial/industrial unit with more than 7 years lease is deemed as a sale.
4. Standard Option to Purchase and Sale and Purchase Agreement
 - Form A, B and D (Similar to Form 1, Form 2 and Form 5)
5. Rules are generally similar to those HDCLA except as follows:
 - a. No License Requirement
 - b. No Project Account
 - c. Refund of option fee
 - Developer refunds 50% and forfeits 50% of booking fee
 - d. Assignment
 - Developer charge assignee a fee not exceeding \$200 and \$200 for developer's solicitor.

Sale of Commercial Properties Act – Progressive Payment

	Progressive Payment Stages	Percentage of Purchase Price
1.	Upon granting of Option to Purchase	10%
2.	Upon exercising Option to Purchase (3 weeks Option Period)	10%
3.	Notice that the foundation works relating to the Unit have been completed	10%
4.	Notice that the reinforced concrete works relating to the Unit have been completed	10%
5.	Notice that the brick walls relating to the Unit have been completed	5%
6.	Notice that the ceiling of the Unit has been completed	5%
7.	Notice that the door and window frames are in position and electrical wiring (without fittings), internal plastering and plumbing of the Unit have been completed	5%
8.	Notice that installation of electrical plant, sanitary equipment and air-conditioning plant (if any) relating to the Unit has been completed	5%
9.	Notice that car park, roads and drains serving the Building have been completed	5%
10.	Within 14 days after Purchaser receives Temporary Occupation Permit or Certificate of Statutory Completion in respect of the Unit	25%
11.	On Completion Date Payable as follows: a) 2% of Purchase Price to Vendor; and b) 8% of Purchase Price to Singapore Academy of Law as stakeholder (Defects Liability – 1 year)	10%

END